

EFFECTIVE

May 9, 2016.

**DEPARTMENT
POLICY****Medicaid (MA) Only**

The Flint Water Group is a MAGI-related MA category.

Flint Water Group coverage is available to any individual under the age of 21, pregnant women, and children born to pregnant women who were served by the Flint water system from April 1, 2014 through September 30, 2025.

An individual was served by the Flint water system if he or she consumed water drawn from the Flint water system and:

- resided in a dwelling connected to the Flint water system,
- had employment by an entity served by the Flint water system,
- received child care or education in a dwelling/structure connected to the Flint water system.

Household income cannot exceed 400% of Federal Poverty Level (FPL).

MAGI-based income methodologies are used in calculating household income.

Individuals in this group cannot be otherwise eligible for or enrolled in any other Medicaid group.

There are no premiums associated with the Flint Water Group.

All eligibility factors must be met in the calendar month being tested.

**Presumptive
Eligibility**

Refer to BEM 136 for presumptive eligibility policy.

**NONFINANCIAL
ELIGIBILITY
FACTORS**

Children must be under age 21 and women must be currently pregnant or within 2 months post-partum.

The MA eligibility factors in the following items must be met.

- BEM 220, Residence.
- BEM 223, Social Security Numbers.
- BEM 225, Citizenship/Alien Status.
- BEM 255, Child Support.
- BEM 257, Third Party Resource Liability.
- BEM 265, Institutional Status.
- BEM 270, Pursuit of Benefits.

**FINANCIAL
ELIGIBILITY
FACTORS****Household
Composition**

Use household group composition policy for MAGI-related children and pregnant women in BEM 211.

Assets

There is no asset test.

Divestment

Policy in BEM 405 applies because income can be divested.

Income Eligibility

Income eligibility exists when net income does not exceed 400% of the federal poverty level.

Apply MAGI methodology policies in BEM 500 to determine income.

**ONGOING
ELIGIBILITY**

Once eligible, a beneficiary's eligibility continues until annual renewal unless the individual:

- Reaches age 21.
- Moves out of state.
- Is ineligible due to Institutional Status; see BEM 265.
- Dies.
- Requests voluntary case closure.

If eligibility was granted based on incorrect or fraudulent information, continuous eligibility may be interrupted.

Note: An ex parte review is required before Medicaid closures when there is an actual or anticipated change, unless the change would result in closure due to ineligibility for all Medicaid.

When possible, an ex parte review should begin at least 90 days before the anticipated change is expected to result in case closure. The review includes consideration of all MA categories; see BAM 115 and 220.

LEGAL BASE

MA

Social Security Act, Section 1902(a)(10)(A)(ii)(XX)

Social Security Act 1902(hh)

42 CFR 435.218

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